

HOUSE No. 1726

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to criminal disposition of limited psilocybin possession offenses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Henry Morgan</i>		<i>3/5/2025</i>
<i>Henry Morgan</i>	<i>xxx</i>	<i>5/2/2025</i>

HOUSE No. 1726

By Representative Gómez of Easthampton (by request), a petition (accompanied by bill, House, No. 1726) of Henry Morgan relative to criminal disposition of limited psilocybin possession offenses. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to criminal disposition of limited psilocybin possession offenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. This Act shall be known and may be cited as the “No Harm No Foul Act.”

2 SECTION 2. Section 34 of chapter 94C is hereby amended by adding a sixth paragraph,
3 viz.,

4 Notwithstanding the foregoing, any complaint for simple possession of psilocybin (i.e.,
5 not with the intent to distribute), may, in the absence of any indication that the offense caused
6 any visible harm to the health and safety of any other person, be dismissed upon a finding by the
7 court that at the time of the alleged offense the defendant (1) was over 21 years of age, (2) was
8 not operating a motor vehicle, and (3) endangered no children.